COMMERCIAL AGREEMENT - RECORD 022

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-022

1. Recitals and defined terms

This Contract Manufacturing Agreement is made between Helioscope Robotics, Inc. as Provider and Vantage Assembly Solutions Inc. as Manufacturer, a sub-assembly business organised in North Carolina, contracting through Vantage Assembly Solutions Inc.. Vantage and the Provider have agreed that terms defined in the recitals and in Exhibit D carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

Vantage has agreed, and the Provider has accepted, that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. On the negotiated text, performance is measured against the exhibit and not against any statement made in the parties' correspondence. In sub-assembly the burden of this sits with operations, and Vantage discharges it across 2 sites under the Contract Manufacturing Agreement. For a manufacturer of Vantage's size the clause is unremarkable, but Article 3 (Scope of Supply) is drafted more tightly here than in the Provider's standard form.

The Provider warrants to Vantage that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. In application, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Because Vantage is a North Carolina sub-assembly business with 2 sites, the Contract Manufacturing Agreement devolves this to the site manager. The Vantage file records the position as at the last amendment, and Article 20 (Notices) is the reference a reviewer should cite when raising it.

Read with Exhibit B, spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Per the amendment history, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. North Carolina is where Vantage runs sub-assembly operations across 2 sites, and the Contract Manufacturing Agreement follows that footprint. For a manufacturer of Vantage's size the clause is unremarkable, but Article 17 (Transition Assistance) is drafted more tightly here than in the Provider's standard form.

Vantage Assembly Solutions Inc. is entitled to require that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. Textually, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Because Vantage is a North Carolina sub-assembly business with 2 sites, the Contract Manufacturing Agreement devolves this to the site manager. Notices under Article 2 (Definitions) go to the contracting entity named in the recital and not to any Vantage affiliate that may operate a site.

Vantage manufacturing agreement - Schedule 3 - Deployment Milestones and Payment Triggers

Vantage milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
VAN-M001	units delivered	2025-10	13	labour agreement	$261,212	invoiceable on certification
VAN-M002	units delivered	2026-03	7	no delay	$244,405	invoiceable on acceptance
VAN-M003	pilot acceptance	2025-05	20	seasonal freeze	$155,013	invoiceable on acceptance
VAN-M004	steady-state handover	2025-06	7	network provisioning	$170,268	invoiceable on certification
VAN-M005	steady-state handover	2025-12	1	seasonal freeze	$42,352	no payment attached
VAN-M006	site survey complete	2024-10	7	network provisioning	$236,501	invoiceable on acceptance
VAN-M007	full acceptance	2026-01	5	Customer IT dependency	$190,355	no payment attached
VAN-M008	warranty commencement	2024-10	12	no delay	$64,305	no payment attached
VAN-M009	steady-state	2026-12	23	seasonal freeze	$38,475	no payment

Vantage milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
	handover					attached
VAN-M010	integration test passed	2024-09	32	facility readiness	$133,874	invoiceable on acceptance
VAN-M011	units delivered	2024-10	24	facility readiness	$14,995	invoiceable on acceptance
VAN-M012	steady-state handover	2024-05	20	facility readiness	$123,311	no payment attached
VAN-M013	steady-state handover	2026-06	23	facility readiness	$59,134	invoiceable on acceptance
VAN-M014	network readiness certified	2025-10	10	facility readiness	$205,641	no payment attached
VAN-M015	units delivered	2025-12	23	labour agreement	$102,097	invoiceable on acceptance
VAN-M016	full acceptance	2025-10	21	labour agreement	$85,536	invoiceable on certification
VAN-M017	units delivered	2026-07	24	network provisioning	$118,317	no payment attached
VAN-M018	steady-state handover	2025-03	26	facility readiness	$170,899	invoiceable on certification
VAN-M019	units delivered	2026-02	10	facility readiness	$49,431	invoiceable on certification
VAN-M020	integration test passed	2024-02	5	Customer IT dependency	$256,276	no payment attached
VAN-M021	warranty commencement	2026-11	18	facility readiness	$81,975	no payment attached
VAN-M022	integration test passed	2026-03	17	no delay	$195,020	invoiceable on acceptance
VAN-M023	warranty commencement	2025-10	16	network provisioning	$211,625	invoiceable on acceptance
VAN-M024	steady-state handover	2025-12	31	facility readiness	$161,524	invoiceable on acceptance
VAN-M025	warranty commencement	2026-01	4	Customer IT dependency	$14,112	invoiceable on certification
VAN-M026	full acceptance	2025-02	8	seasonal freeze	$155,131	no payment attached
VAN-M027	units delivered	2024-02	14	labour agreement	$94,726	invoiceable on acceptance
VAN-M028	units delivered	2026-06	24	seasonal freeze	$14,820	no payment attached
VAN-M029	steady-state handover	2025-12	13	facility readiness	$168,271	invoiceable on certification
VAN-M030	integration test passed	2024-12	on plan	labour agreement	$219,463	no payment attached
VAN-M031	full acceptance	2026-04	15	Customer IT dependency	$208,909	no payment attached
VAN-M032	units delivered	2025-03	16	network provisioning	$113,332	no payment attached
VAN-M033	integration test passed	2025-07	7	labour agreement	$27,715	invoiceable on acceptance
VAN-M034	steady-state handover	2024-02	29	facility readiness	$224,325	invoiceable on acceptance
VAN-M035	network readiness certified	2026-04	9	seasonal freeze	$38,499	invoiceable on certification
VAN-M036	integration test passed	2026-12	23	facility readiness	$186,693	invoiceable on acceptance
VAN-M037	steady-state handover	2026-12	3	labour agreement	$45,480	invoiceable on acceptance
VAN-M038	integration test passed	2025-03	13	Customer IT dependency	$191,370	invoiceable on acceptance
VAN-M039	warranty commencement	2026-08	1	labour agreement	$171,051	invoiceable on certification
VAN-M040	pilot acceptance	2025-11	31	network provisioning	$221,578	invoiceable on certification
VAN-M041	network readiness certified	2024-03	9	network provisioning	$16,576	invoiceable on acceptance
VAN-M042	site survey complete	2026-04	6	no delay	$271,473	invoiceable on certification
VAN-M043	units delivered	2025-04	1	seasonal freeze	$160,262	invoiceable on

Vantage milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
						certification
VAN-M044	full acceptance	2024-05	27	labour agreement	$176,324	invoiceable on acceptance
VAN-M045	units delivered	2024-10	5	no delay	$75,389	invoiceable on acceptance
VAN-M046	site survey complete	2025-07	23	Customer IT dependency	$151,599	invoiceable on acceptance
VAN-M047	network readiness certified	2025-05	1	no delay	$79,935	invoiceable on acceptance
VAN-M048	site survey complete	2025-07	1	facility readiness	$238,135	no payment attached
VAN-M049	pilot acceptance	2024-05	20	facility readiness	$96,241	invoiceable on acceptance
VAN-M050	integration test passed	2024-10	22	labour agreement	$68,758	no payment attached
VAN-M051	pilot acceptance	2025-11	27	Customer IT dependency	$231,113	invoiceable on certification
VAN-M052	site survey complete	2026-01	3	facility readiness	$239,770	invoiceable on acceptance
VAN-M053	integration test passed	2024-08	14	network provisioning	$119,711	invoiceable on acceptance
VAN-M054	network readiness certified	2024-04	20	facility readiness	$138,544	invoiceable on acceptance
VAN-M055	full acceptance	2024-10	31	Customer IT dependency	$127,061	no payment attached
VAN-M056	steady-state handover	2024-05	7	Customer IT dependency	$194,650	no payment attached
VAN-M057	site survey complete	2025-09	17	no delay	$210,500	invoiceable on certification
VAN-M058	pilot acceptance	2026-10	25	network provisioning	$190,521	invoiceable on certification
VAN-M059	network readiness certified	2026-09	22	network provisioning	$234,184	invoiceable on certification
VAN-M060	full acceptance	2025-04	3	no delay	$108,405	invoiceable on acceptance
VAN-M061	pilot acceptance	2024-04	13	seasonal freeze	$266,940	no payment attached
VAN-M062	pilot acceptance	2024-08	11	labour agreement	$60,262	invoiceable on certification
VAN-M063	network readiness certified	2025-07	16	seasonal freeze	$166,806	no payment attached
VAN-M064	integration test passed	2026-04	7	Customer IT dependency	$128,723	invoiceable on acceptance
VAN-M065	network readiness certified	2025-02	30	network provisioning	$62,115	invoiceable on acceptance
VAN-M066	steady-state handover	2026-12	32	Customer IT dependency	$152,139	no payment attached
VAN-M067	site survey complete	2025-10	16	labour agreement	$205,649	no payment attached
VAN-M068	integration test passed	2026-12	23	seasonal freeze	$60,011	invoiceable on acceptance
VAN-M069	integration test passed	2024-08	18	Customer IT dependency	$59,279	invoiceable on acceptance
VAN-M070	warranty commencement	2024-10	30	facility readiness	$160,683	invoiceable on certification
VAN-M071	pilot acceptance	2024-01	9	labour agreement	$184,429	invoiceable on certification
VAN-M072	integration test passed	2026-10	29	Customer IT dependency	$36,251	no payment attached
VAN-M073	steady-state handover	2026-03	29	facility readiness	$51,247	invoiceable on certification
VAN-M074	full acceptance	2025-10	29	Customer IT dependency	$102,643	no payment attached
VAN-M075	pilot acceptance	2024-02	14	seasonal freeze	$84,257	no payment attached
VAN-M076	site survey complete	2024-03	9	facility readiness	$37,703	invoiceable on acceptance
VAN-M077	warranty	2025-12	on plan	network	$188,265	invoiceable on

Vantage milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
	commencement			provisioning		acceptance
VAN-M078	steady-state handover	2024-04	3	no delay	$161,190	invoiceable on certification
VAN-M079	warranty commencement	2024-11	33	seasonal freeze	$17,009	no payment attached
VAN-M080	full acceptance	2024-06	11	seasonal freeze	$61,946	no payment attached
VAN-M081	network readiness certified	2024-12	13	seasonal freeze	$57,778	no payment attached
VAN-M082	network readiness certified	2026-09	5	Customer IT dependency	$108,336	invoiceable on acceptance
VAN-M083	units delivered	2025-05	30	seasonal freeze	$134,349	invoiceable on certification
VAN-M084	steady-state handover	2025-06	16	network provisioning	$216,852	invoiceable on acceptance
VAN-M085	integration test passed	2024-10	23	facility readiness	$198,516	no payment attached
VAN-M086	steady-state handover	2024-12	25	Customer IT dependency	$91,001	no payment attached

2. Scope of supply and orders

The Provider has undertaken to Vantage that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. In effect, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Running 2 sites in sub-assembly, Vantage takes this obligation at site level rather than centrally under the Contract Manufacturing Agreement. Where Vantage has raised a query the Provider has answered by reference to Article 19 (Confidentiality), and the exchange is on the contract file.

The Provider has undertaken to Vantage that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. On the mechanics, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. North Carolina is where Vantage runs sub-assembly operations across 2 sites, and the Contract Manufacturing Agreement follows that footprint. The obligation as it applies to Vantage was tightened at signature, and Article 13 (Licences) carries the negotiated wording rather than the standard wording.

The Provider has undertaken to Vantage that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. Strictly, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Site count matters here: Vantage has 2 sites, and the Contract Manufacturing Agreement treats each as a separate delivery point. The Vantage file records the position as at the last amendment, and Article 19 (Confidentiality) is the reference a reviewer should cite when raising it.

Under Article 6 (Fees and Payment) of the Contract Manufacturing Agreement, confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. On timing, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Vantage treats the obligation as a site-level matter across its 2 sites in North Carolina, consistent with the Contract Manufacturing Agreement. The obligation as it applies to Vantage was tightened at signature, and Article 11 (Data and Telemetry) carries the negotiated wording rather than the standard wording.

3. Delivery, title and risk

Subject to Article 14 (Indemnities), each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. On timing, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. North Carolina is where Vantage runs sub-assembly operations across 2 sites, and the Contract Manufacturing Agreement follows that footprint. The Vantage file records the position as at the last amendment, and Article 12 (Intellectual Property) is the reference a reviewer should cite when raising it.

Vantage retains the right, notwithstanding Article 16 (Term and Termination), to require that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. On timing, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Vantage runs 2 sites from North Carolina in sub-assembly, so the Contract Manufacturing Agreement is administered locally and this clause is applied per site. For a manufacturer of Vantage's size the clause is unremarkable, but Article 4 (Orders and Quantities) is drafted more tightly here than in the Provider's standard form.

Vantage pays the fees under Schedule 3 in consideration of the Provider's undertaking that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Tighter here than standard: the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Running 2 sites in sub-assembly, Vantage takes this obligation at site level rather than centrally under the Contract Manufacturing Agreement. The Vantage file records the position as at the last amendment, and Article 20 (Notices) is the reference a reviewer should cite when raising it.

Vantage pays the fees under Schedule 2 in consideration of the Provider's undertaking that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. Procedurally, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. For Vantage, a sub-assembly operator running 2 sites out of North Carolina, the point matters because the Contract Manufacturing Agreement is administered site by site. The Vantage relationship is managed against Article 18 (Assignment) at each quarterly review, and any variance is minuted there rather than in the Order.

Vantage manufacturing agreement - Exhibit C - Service Levels and Credit Ladder

Vantage service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
VAN-L001	availability	96.1%	2% of monthly fee	20% of monthly fee	excluding force majeure	credit only
VAN-L002	throughput	96.7%	1% of monthly fee	15% of monthly fee	excluding Customer-caused outage	credit only
VAN-L003	resolution time	95.3%	10% of monthly fee	14% of monthly fee	excluding scheduled maintenance	credit only
VAN-L004	availability	95.7%	2% of monthly fee	28% of monthly fee	excluding scheduled maintenance	credit only
VAN-L005	throughput	96.9%	11% of monthly fee	5% of monthly fee	excluding force majeure	credit then termination right
VAN-L006	availability	95.1%	11% of monthly fee	8% of monthly fee	excluding scheduled maintenance	credit then termination right
VAN-L007	availability	96.0%	2% of monthly fee	6% of monthly fee	no exclusion	credit then termination right
VAN-L008	response time	95.8%	11% of monthly fee	8% of monthly fee	excluding Customer-caused outage	credit then termination right
VAN-L009	availability	93.8%	11% of monthly fee	23% of monthly fee	excluding scheduled maintenance	credit only
VAN-L010	resolution time	98.0%	2% of monthly fee	30% of monthly fee	excluding scheduled maintenance	credit then termination right
VAN-L011	throughput	93.9%	8% of monthly fee	26% of monthly fee	excluding Customer-caused outage	credit then termination right
VAN-L012	availability	95.2%	9% of monthly fee	14% of monthly fee	excluding scheduled maintenance	credit only
VAN-L013	throughput	96.1%	7% of monthly fee	8% of monthly fee	excluding Customer-caused outage	credit then termination right
VAN-L014	availability	97.1%	2% of monthly	22% of monthly	excluding	credit only

Vantage service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee	scheduled maintenance	
VAN-L015	response time	95.1%	12% of monthly fee	23% of monthly fee	no exclusion	credit only
VAN-L016	resolution time	95.5%	8% of monthly fee	19% of monthly fee	excluding force majeure	credit then termination right
VAN-L017	throughput	93.0%	2% of monthly fee	27% of monthly fee	no exclusion	credit only
VAN-L018	response time	97.6%	7% of monthly fee	21% of monthly fee	no exclusion	credit only
VAN-L019	resolution time	95.8%	7% of monthly fee	10% of monthly fee	excluding force majeure	credit only
VAN-L020	response time	95.0%	3% of monthly fee	5% of monthly fee	excluding Customer-caused outage	credit then termination right
VAN-L021	availability	90.9%	5% of monthly fee	12% of monthly fee	excluding scheduled maintenance	credit only
VAN-L022	availability	94.5%	5% of monthly fee	15% of monthly fee	excluding force majeure	credit only
VAN-L023	availability	91.4%	5% of monthly fee	15% of monthly fee	no exclusion	credit only
VAN-L024	response time	93.6%	7% of monthly fee	30% of monthly fee	excluding force majeure	credit only
VAN-L025	availability	95.6%	1% of monthly fee	30% of monthly fee	excluding Customer-caused outage	credit only
VAN-L026	throughput	98.7%	10% of monthly fee	12% of monthly fee	no exclusion	credit then termination right
VAN-L027	resolution time	94.7%	4% of monthly fee	9% of monthly fee	excluding Customer-caused outage	credit then termination right
VAN-L028	resolution time	97.5%	9% of monthly fee	23% of monthly fee	excluding Customer-caused outage	credit then termination right
VAN-L029	resolution time	98.6%	11% of monthly fee	20% of monthly fee	excluding force majeure	credit then termination right
VAN-L030	response time	93.1%	2% of monthly fee	7% of monthly fee	excluding Customer-caused outage	credit then termination right
VAN-L031	resolution time	97.6%	4% of monthly fee	10% of monthly fee	excluding force majeure	credit then termination right
VAN-L032	availability	93.2%	10% of monthly fee	10% of monthly fee	excluding scheduled maintenance	credit only
VAN-L033	availability	94.3%	6% of monthly fee	11% of monthly fee	excluding force majeure	credit then termination right
VAN-L034	availability	95.0%	3% of monthly fee	6% of monthly fee	no exclusion	credit only
VAN-L035	response time	96.1%	6% of monthly fee	25% of monthly fee	excluding force majeure	credit then termination right
VAN-L036	availability	96.7%	7% of monthly fee	22% of monthly fee	excluding scheduled maintenance	credit then termination right
VAN-L037	resolution time	90.4%	12% of monthly fee	29% of monthly fee	no exclusion	credit only
VAN-L038	throughput	92.2%	6% of monthly fee	6% of monthly fee	excluding Customer-caused outage	credit then termination right
VAN-L039	resolution time	95.1%	8% of monthly fee	28% of monthly fee	excluding Customer-caused outage	credit only
VAN-L040	availability	94.1%	10% of monthly fee	20% of monthly fee	excluding Customer-caused outage	credit only
VAN-L041	response time	96.2%	9% of monthly fee	13% of monthly fee	no exclusion	credit only
VAN-L042	throughput	93.0%	8% of monthly fee	12% of monthly fee	excluding force majeure	credit then termination right

Vantage service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
VAN-L043	resolution time	95.5%	7% of monthly fee	10% of monthly fee	excluding Customer-caused outage	credit only
VAN-L044	availability	95.5%	11% of monthly fee	5% of monthly fee	excluding scheduled maintenance	credit then termination right
VAN-L045	response time	92.9%	5% of monthly fee	17% of monthly fee	excluding force majeure	credit only
VAN-L046	response time	90.7%	6% of monthly fee	14% of monthly fee	no exclusion	credit then termination right
VAN-L047	response time	92.3%	9% of monthly fee	7% of monthly fee	excluding Customer-caused outage	credit then termination right
VAN-L048	resolution time	93.7%	9% of monthly fee	12% of monthly fee	no exclusion	credit only
VAN-L049	resolution time	97.6%	11% of monthly fee	6% of monthly fee	excluding scheduled maintenance	credit then termination right
VAN-L050	response time	93.0%	4% of monthly fee	27% of monthly fee	excluding Customer-caused outage	credit then termination right
VAN-L051	response time	98.2%	1% of monthly fee	6% of monthly fee	excluding force majeure	credit then termination right
VAN-L052	resolution time	93.7%	12% of monthly fee	13% of monthly fee	excluding scheduled maintenance	credit only
VAN-L053	resolution time	92.9%	5% of monthly fee	18% of monthly fee	no exclusion	credit only
VAN-L054	throughput	97.5%	2% of monthly fee	16% of monthly fee	excluding force majeure	credit only
VAN-L055	throughput	94.3%	7% of monthly fee	20% of monthly fee	no exclusion	credit only
VAN-L056	response time	91.4%	8% of monthly fee	15% of monthly fee	no exclusion	credit only
VAN-L057	resolution time	90.8%	12% of monthly fee	29% of monthly fee	no exclusion	credit only
VAN-L058	response time	92.1%	8% of monthly fee	12% of monthly fee	excluding Customer-caused outage	credit only
VAN-L059	availability	94.5%	3% of monthly fee	15% of monthly fee	excluding scheduled maintenance	credit only
VAN-L060	availability	90.3%	12% of monthly fee	28% of monthly fee	excluding Customer-caused outage	credit then termination right
VAN-L061	availability	90.0%	6% of monthly fee	13% of monthly fee	no exclusion	credit only
VAN-L062	resolution time	92.7%	9% of monthly fee	17% of monthly fee	excluding force majeure	credit then termination right
VAN-L063	response time	96.6%	9% of monthly fee	26% of monthly fee	excluding Customer-caused outage	credit then termination right
VAN-L064	resolution time	92.7%	11% of monthly fee	11% of monthly fee	excluding scheduled maintenance	credit only
VAN-L065	response time	92.2%	11% of monthly fee	20% of monthly fee	excluding scheduled maintenance	credit then termination right
VAN-L066	resolution time	90.8%	3% of monthly fee	10% of monthly fee	excluding Customer-caused outage	credit then termination right
VAN-L067	response time	92.7%	1% of monthly fee	30% of monthly fee	excluding Customer-caused outage	credit then termination right
VAN-L068	resolution time	97.5%	4% of monthly fee	13% of monthly fee	excluding Customer-caused outage	credit only
VAN-L069	throughput	92.6%	4% of monthly fee	11% of monthly fee	no exclusion	credit then termination right

Vantage service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
VAN-L070	response time	94.0%	9% of monthly fee	5% of monthly fee	excluding scheduled maintenance	credit then termination right
VAN-L071	throughput	97.0%	11% of monthly fee	27% of monthly fee	excluding scheduled maintenance	credit only
VAN-L072	response time	95.9%	9% of monthly fee	17% of monthly fee	excluding force majeure	credit only
VAN-L073	response time	92.0%	5% of monthly fee	12% of monthly fee	no exclusion	credit only
VAN-L074	throughput	97.9%	5% of monthly fee	15% of monthly fee	no exclusion	credit then termination right
VAN-L075	resolution time	91.9%	2% of monthly fee	23% of monthly fee	no exclusion	credit then termination right
VAN-L076	resolution time	93.8%	11% of monthly fee	21% of monthly fee	no exclusion	credit only
VAN-L077	availability	96.8%	5% of monthly fee	28% of monthly fee	excluding force majeure	credit only
VAN-L078	response time	92.7%	6% of monthly fee	9% of monthly fee	excluding force majeure	credit then termination right
VAN-L079	availability	91.9%	12% of monthly fee	29% of monthly fee	excluding force majeure	credit then termination right
VAN-L080	availability	92.2%	9% of monthly fee	20% of monthly fee	no exclusion	credit then termination right

4. Fees, invoicing and escalation

Neither Vantage nor the Provider may treat Article 12 (Intellectual Property) as permitting the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. Strictly, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. North Carolina is where Vantage runs sub-assembly operations across 2 sites, and the Contract Manufacturing Agreement follows that footprint. The obligation as it applies to Vantage was tightened at signature, and Article 19 (Confidentiality) carries the negotiated wording rather than the standard wording.

The Provider warrants to Vantage that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. By way of qualification, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Site count matters here: Vantage has 2 sites, and the Contract Manufacturing Agreement treats each as a separate delivery point. Administration of this obligation for Vantage sits with the account team rather than with central contracts, and Article 10 (Change Control) is where it is evidenced.

Vantage Assembly Solutions Inc. is entitled to require that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. On timing, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Because Vantage is a North Carolina sub-assembly business with 2 sites, the Contract Manufacturing Agreement devolves this to the site manager. The Vantage file records the position as at the last amendment, and Article 14 (Indemnities) is the reference a reviewer should cite when raising it.

The Provider has undertaken to Vantage that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. On the negotiated text, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Because Vantage is a North Carolina sub-assembly business with 2 sites, the Contract Manufacturing Agreement devolves this to the site manager. Where Vantage has raised a query the Provider has answered by reference to Article 3 (Scope of Supply), and the exchange is on the contract file.

5. Service levels and credits

Vantage Assembly Solutions Inc. undertakes that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. In point of remedy, the

obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. 2 sites in North Carolina means Vantage applies the Contract Manufacturing Agreement through its regional operations team rather than through head office. The Vantage relationship is managed against Article 12 (Intellectual Property) at each quarterly review, and any variance is minuted there rather than in the Order.

Nothing in Exhibit B entitles Vantage to assume that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. By design, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. 2 sites in North Carolina means Vantage applies the Contract Manufacturing Agreement through its regional operations team rather than through head office. The Vantage file records the position as at the last amendment, and Article 10 (Change Control) is the reference a reviewer should cite when raising it.

The Provider warrants to Vantage that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. By way of qualification, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. In sub-assembly the burden of this sits with operations, and Vantage discharges it across 2 sites under the Contract Manufacturing Agreement. Administration of this obligation for Vantage sits with the account team rather than with central contracts, and Article 7 (Service Levels) is where it is evidenced.

The Provider has undertaken to Vantage that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. In application, performance is measured against the exhibit and not against any statement made in the parties' correspondence. 2 sites in North Carolina means Vantage applies the Contract Manufacturing Agreement through its regional operations team rather than through head office. Vantage has taken the point up once since signature; the correspondence is filed against Article 10 (Change Control) and did not result in an amendment.

6. Acceptance and change control

Vantage acknowledges that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. In point of remedy, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Running 2 sites in sub-assembly, Vantage takes this obligation at site level rather than centrally under the Contract Manufacturing Agreement. Because Vantage operates in sub-assembly, the practical burden of this clause falls on its North Carolina operation, and Article 19 (Confidentiality) governs how it is measured.

Vantage is not obliged, under Exhibit D, to accept that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. Materially, performance is measured against the exhibit and not against any statement made in the parties' correspondence. North Carolina is where Vantage runs sub-assembly operations across 2 sites, and the Contract Manufacturing Agreement follows that footprint. Nothing in the Vantage negotiation history qualifies Article 9 (Customer Obligations), and a reviewer should not read the pre-signature drafts as doing so.

Nothing in Schedule 5 entitles Vantage to assume that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. Practically, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. North Carolina is where Vantage runs sub-assembly operations across 2 sites, and the Contract Manufacturing Agreement follows that footprint. Nothing in the Vantage negotiation history qualifies Article 15 (Limitation of Liability), and a reviewer should not read the pre-signature drafts as doing so.

Article 5 (Delivery and Title) provides that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. As a matter of construction, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. North Carolina is where Vantage runs sub-assembly operations across 2 sites, and the Contract Manufacturing Agreement follows that footprint. The Vantage file records the position as at the last amendment, and Article 18 (Assignment) is the reference a reviewer should cite when raising it.

Vantage manufacturing agreement - Exhibit D - Component Prices, Lead Times and Sourcing

Vantage price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
VAN-P0001	part 5744-J	encoder	$1,584	8	450	qualification in progress	EOL notice 6 months
VAN-P0002	part 4112-T	battery module	$1,282	21	250	single source	EOL notice 6 months
VAN-P0003	part 2936-V	harness	$2,157	23	300	dual sourced	no EOL commitment
VAN-P0004	part 9793-C	optical sensor	$2,209	16	300	dual sourced	EOL notice 6 months
VAN-P0005	part 6277-R	gearbox	$1,615	21	50	single source	no EOL commitment
VAN-P0006	part 7142-J	battery module	$883	10	400	single source	last-time-buy notice 12 months
VAN-P0007	part 3996-C	battery module	$368	5	300	single source	last-time-buy notice 12 months
VAN-P0008	part 7939-E	controller board	$249	17	50	qualification in progress	last-time-buy notice 12 months
VAN-P0009	part 9407-X	encoder	$1,978	13	300	qualification in progress	EOL notice 6 months
VAN-P0010	part 6947-J	castor assembly	$432	24	450	qualification in progress	EOL notice 6 months
VAN-P0011	part 6704-S	optical sensor	$879	10	200	qualification in progress	EOL notice 6 months
VAN-P0012	part 4344-F	gearbox	$515	18	400	qualification in progress	no EOL commitment
VAN-P0013	part 7084-U	gearbox	$1,817	16	150	single source	no EOL commitment
VAN-P0014	part 7809-F	harness	$833	7	100	qualification in progress	no EOL commitment
VAN-P0015	part 7204-L	battery module	$136	4	350	single source	last-time-buy notice 12 months
VAN-P0016	part 1365-G	drive unit	$128	19	400	dual sourced	EOL notice 6 months
VAN-P0017	part 8951-N	battery module	$1,699	25	150	qualification in progress	last-time-buy notice 12 months
VAN-P0018	part 1596-I	gearbox	$1,601	10	500	single source	EOL notice 6 months
VAN-P0019	part 9529-L	drive unit	$1,743	11	500	single source	no EOL commitment
VAN-P0020	part 7655-E	encoder	$62	16	400	single source	no EOL commitment
VAN-P0021	part 7827-Y	controller board	$368	17	200	dual sourced	last-time-buy notice 12 months
VAN-P0022	part 8094-L	optical sensor	$844	11	100	dual sourced	last-time-buy notice 12 months
VAN-P0023	part 1067-K	battery module	$2,284	17	250	single source	last-time-buy notice 12 months
VAN-P0024	part 3310-N	gearbox	$1,482	24	450	single source	no EOL commitment
VAN-P0025	part 2956-I	gearbox	$2,183	25	100	dual sourced	EOL notice 6 months
VAN-P0026	part 8528-I	battery module	$1,936	13	350	qualification in progress	last-time-buy notice 12 months
VAN-P0027	part 5371-V	optical sensor	$561	5	450	qualification in progress	last-time-buy notice 12 months
VAN-P0028	part 4813-X	harness	$524	21	500	single source	no EOL commitment
VAN-P0029	part 9458-N	drive unit	$583	14	350	single source	last-time-buy notice 12

Vantage price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							months
VAN-P0030	part 5682-V	encoder	$1,292	9	600	qualification in progress	EOL notice 6 months
VAN-P0031	part 2577-J	encoder	$1,701	13	400	single source	EOL notice 6 months
VAN-P0032	part 6538-L	encoder	$246	7	400	dual sourced	no EOL commitment
VAN-P0033	part 3947-C	gearbox	$2,372	25	600	single source	no EOL commitment
VAN-P0034	part 2226-X	optical sensor	$715	12	150	dual sourced	no EOL commitment
VAN-P0035	part 4879-M	drive unit	$573	20	600	qualification in progress	EOL notice 6 months
VAN-P0036	part 9974-Z	gearbox	$801	23	450	dual sourced	EOL notice 6 months
VAN-P0037	part 5690-B	harness	$1,225	8	200	single source	no EOL commitment
VAN-P0038	part 5959-M	optical sensor	$1,141	6	350	qualification in progress	last-time-buy notice 12 months
VAN-P0039	part 7919-Z	encoder	$1,455	21	250	dual sourced	last-time-buy notice 12 months
VAN-P0040	part 8198-K	controller board	$63	19	550	dual sourced	last-time-buy notice 12 months
VAN-P0041	part 7448-D	optical sensor	$2,054	12	100	dual sourced	last-time-buy notice 12 months
VAN-P0042	part 2031-V	harness	$151	21	300	dual sourced	last-time-buy notice 12 months
VAN-P0043	part 7864-W	battery module	$1,586	24	600	qualification in progress	no EOL commitment
VAN-P0044	part 9475-S	harness	$1,774	14	400	qualification in progress	last-time-buy notice 12 months
VAN-P0045	part 4955-E	harness	$319	10	550	dual sourced	no EOL commitment
VAN-P0046	part 9461-P	castor assembly	$1,412	10	300	qualification in progress	EOL notice 6 months

6. Acceptance and change control - part 2 of 2

Presentation of the 6. Acceptance and change control carries on below without restarting the row numbers, the break being one of pagination only. The break is editorial.

The measurement basis recorded when the 6. Acceptance and change control opened is unchanged, so any figure here is comparable with any figure in the earlier parts. Pagination alone determines where it falls.

Vantage manufacturing agreement - Exhibit D - Component Prices, Lead Times and Sourcing (continued, part 2 of 2)

Vantage price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
VAN-P0047	part 6046-D	encoder	$2,260	11	550	dual sourced	EOL notice 6 months
VAN-P0048	part 6816-O	gearbox	$740	5	350	dual sourced	last-time-buy notice 12 months
VAN-P0049	part 9166-E	encoder	$1,196	19	550	single source	EOL notice 6 months
VAN-P0050	part 1834-E	castor assembly	$1,788	7	100	qualification in progress	EOL notice 6 months
VAN-P0051	part 5292-M	controller board	$746	24	250	dual sourced	no EOL commitment
VAN-P0052	part 3969-F	encoder	$1,612	11	300	single source	no EOL commitment
VAN-P0053	part 7708-E	optical sensor	$1,000	16	300	qualification in progress	no EOL commitment

Vantage price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
VAN-P0054	part 6331-T	encoder	$1,118	10	600	single source	EOL notice 6 months
VAN-P0055	part 3438-F	optical sensor	$1,569	17	300	single source	no EOL commitment
VAN-P0056	part 3023-I	gearbox	$647	13	50	single source	EOL notice 6 months
VAN-P0057	part 7634-Y	castor assembly	$326	10	100	qualification in progress	no EOL commitment
VAN-P0058	part 4137-Y	controller board	$1,525	10	600	dual sourced	EOL notice 6 months
VAN-P0059	part 7917-T	drive unit	$759	25	200	single source	last-time-buy notice 12 months
VAN-P0060	part 6944-O	optical sensor	$1,024	8	500	dual sourced	last-time-buy notice 12 months
VAN-P0061	part 1969-T	harness	$1,081	16	100	single source	EOL notice 6 months
VAN-P0062	part 3708-F	battery module	$882	18	150	single source	EOL notice 6 months
VAN-P0063	part 2283-R	castor assembly	$1,902	10	550	qualification in progress	no EOL commitment
VAN-P0064	part 6813-X	drive unit	$329	16	100	qualification in progress	last-time-buy notice 12 months
VAN-P0065	part 8125-L	controller board	$1,660	6	550	dual sourced	no EOL commitment
VAN-P0066	part 5679-R	battery module	$2,005	14	550	single source	EOL notice 6 months
VAN-P0067	part 3592-P	gearbox	$1,934	15	250	dual sourced	no EOL commitment
VAN-P0068	part 9229-X	battery module	$2,209	16	500	qualification in progress	EOL notice 6 months
VAN-P0069	part 3050-G	battery module	$292	20	150	single source	no EOL commitment
VAN-P0070	part 6616-Z	harness	$2,112	4	250	dual sourced	last-time-buy notice 12 months
VAN-P0071	part 5804-K	encoder	$1,704	8	250	dual sourced	no EOL commitment
VAN-P0072	part 3739-Z	optical sensor	$1,768	24	150	single source	no EOL commitment
VAN-P0073	part 6814-S	battery module	$363	18	350	single source	EOL notice 6 months
VAN-P0074	part 9117-T	drive unit	$684	21	150	dual sourced	no EOL commitment
VAN-P0075	part 1298-R	battery module	$520	15	600	single source	last-time-buy notice 12 months
VAN-P0076	part 2295-O	drive unit	$759	19	200	single source	EOL notice 6 months
VAN-P0077	part 6077-Z	optical sensor	$2,362	25	150	qualification in progress	no EOL commitment
VAN-P0078	part 7280-P	battery module	$632	11	150	qualification in progress	last-time-buy notice 12 months
VAN-P0079	part 4884-E	drive unit	$1,341	17	600	qualification in progress	EOL notice 6 months
VAN-P0080	part 8508-Y	drive unit	$1,240	9	500	single source	last-time-buy notice 12 months
VAN-P0081	part 3801-C	controller board	$532	15	400	qualification in progress	no EOL commitment
VAN-P0082	part 6464-I	controller board	$107	21	400	dual sourced	no EOL commitment
VAN-P0083	part 8315-R	gearbox	$1,741	20	550	single source	no EOL commitment
VAN-P0084	part 8802-P	controller board	$479	14	450	dual sourced	last-time-buy notice 12

Vantage price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							months
VAN-P0085	part 1916-G	controller board	$1,027	13	500	dual sourced	last-time-buy notice 12 months
VAN-P0086	part 5014-M	castor assembly	$805	9	500	single source	no EOL commitment
VAN-P0087	part 1400-G	controller board	$1,138	24	150	single source	last-time-buy notice 12 months
VAN-P0088	part 2655-V	controller board	$979	10	450	dual sourced	last-time-buy notice 12 months
VAN-P0089	part 6813-X	gearbox	$2,192	21	100	dual sourced	no EOL commitment
VAN-P0090	part 7955-J	battery module	$2,218	25	450	dual sourced	no EOL commitment
VAN-P0091	part 4254-N	battery module	$578	20	300	qualification in progress	no EOL commitment
VAN-P0092	part 3173-K	harness	$1,430	10	50	dual sourced	EOL notice 6 months

7. Data, intellectual property and licences

Vantage may require that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. Intended effect: where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Vantage treats the obligation as a site-level matter across its 2 sites in North Carolina, consistent with the Contract Manufacturing Agreement. Notices under Article 14 (Indemnities) go to the contracting entity named in the recital and not to any Vantage affiliate that may operate a site.

Nothing in Exhibit C entitles Vantage to assume that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On the negotiated text, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. The Contract Manufacturing Agreement reaches each of Vantage's 2 sites separately, which is how a sub-assembly operator in North Carolina administers it. Because Vantage operates in sub-assembly, the practical burden of this clause falls on its North Carolina operation, and Article 5 (Delivery and Title) governs how it is measured.

The Provider has undertaken to Vantage that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. Strictly, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. This bites at Vantage's 2 sites, since a sub-assembly operator administers the Contract Manufacturing Agreement where the units work. For a manufacturer of Vantage's size the clause is unremarkable, but Article 11 (Data and Telemetry) is drafted more tightly here than in the Provider's standard form.

Vantage has agreed, and the Provider has accepted, that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Operationally, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. The Contract Manufacturing Agreement reaches each of Vantage's 2 sites separately, which is how a sub-assembly operator in North Carolina administers it. For a manufacturer of Vantage's size the clause is unremarkable, but Article 14 (Indemnities) is drafted more tightly here than in the Provider's standard form.

8. Indemnities and limitation of liability

Except as Article 17 (Transition Assistance) permits, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. On the wording, performance is measured against the exhibit and not against any statement made in the parties' correspondence. For Vantage, a sub-assembly operator running 2 sites out of North Carolina, the point matters because the Contract Manufacturing Agreement is administered site by site. Nothing in the Vantage negotiation history qualifies Article 11 (Data and Telemetry), and a reviewer should not read the pre-signature drafts as doing so.

Article 7 (Service Levels) provides that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. By way of qualification, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Running 2 sites in sub-assembly, Vantage takes this obligation at site level rather than centrally under the Contract Manufacturing Agreement. The Vantage file records the position as at the last amendment, and Article 10 (Change Control) is the reference a reviewer should cite when raising it.

Vantage has agreed, and the Provider has accepted, that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. On this point, performance is measured against the exhibit and not against any statement made in the parties' correspondence. This bites at Vantage's 2 sites, since a sub-assembly operator administers the Contract Manufacturing Agreement where the units work. The Vantage relationship is managed against Article 2 (Definitions) at each quarterly review, and any variance is minuted there rather than in the Order.

Vantage retains the right, notwithstanding Article 3 (Scope of Supply), to require that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. Materially, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Vantage treats the obligation as a site-level matter across its 2 sites in North Carolina, consistent with the Contract Manufacturing Agreement. Where Vantage has raised a query the Provider has answered by reference to Article 20 (Notices), and the exchange is on the contract file.

Vantage manufacturing agreement - Schedule 5 - Notices, Periods and Addressees

Vantage notice type	Subject	Period	Addressee	Method	Deemed given
VAN-N001	price adjustment	65 days	Contracts Manager	portal notice	on receipt
VAN-N002	change of control	15 days	Chief Operating Officer	courier only	on receipt
VAN-N003	assignment request	10 days	General Counsel	courier and email	on receipt
VAN-N004	force majeure	90 days	Chief Operating Officer	portal notice	on the second business day after despatch
VAN-N005	service credit claim	15 days	Contracts Manager	email with acknowledgement	on despatch
VAN-N006	service credit claim	10 days	Contracts Manager	portal notice	on receipt
VAN-N007	termination for cause	90 days	Chief Operating Officer	email with acknowledgement	on despatch
VAN-N008	force majeure	30 days	designated account executive	courier and email	on the second business day after despatch
VAN-N009	assignment request	60 days	General Counsel	courier only	on despatch
VAN-N010	termination for cause	20 days	Contracts Manager	courier only	on the second business day after despatch
VAN-N011	termination for cause	55 days	Contracts Manager	courier only	on despatch
VAN-N012	breach	60 days	designated account executive	courier only	on despatch
VAN-N013	service credit claim	45 days	Contracts Manager	portal notice	on the second business day after despatch
VAN-N014	renewal election	40 days	General Counsel	email with acknowledgement	on receipt
VAN-N015	non-renewal	10 days	Chief Operating Officer	courier only	on despatch
VAN-N016	non-renewal	5 days	General Counsel	courier and email	on despatch
VAN-N017	breach	65 days	Chief Operating Officer	portal notice	on receipt
VAN-N018	breach	80 days	designated account executive	courier only	on receipt
VAN-N019	force majeure	20 days	designated account executive	email with acknowledgement	on the second business day after despatch
VAN-N020	renewal election	65 days	General Counsel	courier and email	on despatch
VAN-N021	assignment request	50 days	Chief Operating Officer	courier only	on despatch
VAN-N022	termination for cause	90 days	General Counsel	email with acknowledgement	on the second business day after

Vantage notice type	Subject	Period	Addressee	Method	Deemed given
					despatch
VAN-N023	non-renewal	50 days	Contracts Manager	email with acknowledgement	on despatch
VAN-N024	renewal election	85 days	General Counsel	courier only	on the second business day after despatch
VAN-N025	service credit claim	85 days	General Counsel	courier only	on despatch
VAN-N026	service credit claim	70 days	Contracts Manager	courier only	on receipt
VAN-N027	assignment request	80 days	designated account executive	courier only	on despatch
VAN-N028	breach	25 days	designated account executive	portal notice	on receipt
VAN-N029	assignment request	20 days	Contracts Manager	email with acknowledgement	on receipt
VAN-N030	service credit claim	75 days	designated account executive	email with acknowledgement	on despatch
VAN-N031	service credit claim	40 days	designated account executive	courier only	on the second business day after despatch
VAN-N032	force majeure	55 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
VAN-N033	change of control	55 days	Chief Operating Officer	portal notice	on despatch
VAN-N034	force majeure	75 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
VAN-N035	termination for cause	90 days	Chief Operating Officer	courier only	on receipt
VAN-N036	non-renewal	75 days	General Counsel	email with acknowledgement	on the second business day after despatch
VAN-N037	force majeure	60 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
VAN-N038	force majeure	75 days	designated account executive	portal notice	on despatch
VAN-N039	termination for cause	10 days	Contracts Manager	courier and email	on despatch
VAN-N040	breach	75 days	Contracts Manager	courier and email	on receipt
VAN-N041	price adjustment	40 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
VAN-N042	price adjustment	90 days	General Counsel	courier and email	on receipt
VAN-N043	non-renewal	45 days	General Counsel	courier and email	on receipt
VAN-N044	price adjustment	30 days	Contracts Manager	courier and email	on despatch
VAN-N045	termination for cause	50 days	Chief Operating Officer	portal notice	on the second business day after despatch
VAN-N046	change of control	25 days	General Counsel	portal notice	on despatch
VAN-N047	renewal election	85 days	Chief Operating Officer	courier only	on despatch
VAN-N048	price adjustment	30 days	Chief Operating Officer	courier and email	on despatch
VAN-N049	service credit claim	40 days	General Counsel	portal notice	on despatch
VAN-N050	assignment request	60 days	Contracts Manager	courier and email	on the second business day after despatch
VAN-N051	force majeure	40 days	designated account executive	email with acknowledgement	on despatch
VAN-N052	service credit claim	75 days	Chief Operating Officer	email with acknowledgement	on receipt
VAN-N053	force majeure	15 days	General Counsel	courier only	on the second business day after despatch
VAN-N054	termination for cause	60 days	Contracts Manager	courier only	on the second business day after despatch
VAN-N055	non-renewal	50 days	Contracts Manager	courier only	on despatch
VAN-N056	price adjustment	35 days	General Counsel	courier and email	on despatch
VAN-N057	price adjustment	50 days	Contracts Manager	courier only	on despatch

Vantage notice type	Subject	Period	Addressee	Method	Deemed given
VAN-N058	renewal election	75 days	General Counsel	courier and email	on despatch
VAN-N059	non-renewal	25 days	Chief Operating Officer	courier only	on receipt
VAN-N060	price adjustment	40 days	designated account executive	email with acknowledgement	on receipt
VAN-N061	termination for cause	15 days	Contracts Manager	portal notice	on the second business day after despatch
VAN-N062	price adjustment	75 days	Chief Operating Officer	courier only	on receipt
VAN-N063	price adjustment	25 days	Chief Operating Officer	courier only	on despatch
VAN-N064	renewal election	30 days	General Counsel	email with acknowledgement	on despatch
VAN-N065	termination for cause	25 days	Contracts Manager	email with acknowledgement	on despatch
VAN-N066	change of control	70 days	Chief Operating Officer	courier only	on the second business day after despatch
VAN-N067	termination for cause	70 days	Contracts Manager	email with acknowledgement	on receipt
VAN-N068	service credit claim	25 days	General Counsel	courier only	on the second business day after despatch
VAN-N069	force majeure	10 days	General Counsel	courier only	on receipt
VAN-N070	change of control	30 days	Chief Operating Officer	courier only	on despatch
VAN-N071	termination for cause	50 days	Chief Operating Officer	email with acknowledgement	on receipt
VAN-N072	service credit claim	85 days	designated account executive	courier and email	on receipt
VAN-N073	change of control	80 days	Chief Operating Officer	courier and email	on receipt
VAN-N074	renewal election	55 days	General Counsel	portal notice	on despatch
VAN-N075	change of control	75 days	designated account executive	courier and email	on the second business day after despatch
VAN-N076	assignment request	35 days	General Counsel	portal notice	on the second business day after despatch
VAN-N077	price adjustment	25 days	Chief Operating Officer	courier only	on receipt
VAN-N078	non-renewal	15 days	Contracts Manager	courier and email	on the second business day after despatch

9. Term, termination and transition

Article 5 (Delivery and Title) of the Contract Manufacturing Agreement is to be construed so that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. As between them, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. For Vantage, a sub-assembly operator running 2 sites out of North Carolina, the point matters because the Contract Manufacturing Agreement is administered site by site. Vantage has taken the point up once since signature; the correspondence is filed against Article 17 (Transition Assistance) and did not result in an amendment.

Read with Exhibit A, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. As agreed, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. The Contract Manufacturing Agreement reaches each of Vantage's 2 sites separately, which is how a sub-assembly operator in North Carolina administers it. The obligation as it applies to Vantage was tightened at signature, and Article 18 (Assignment) carries the negotiated wording rather than the standard wording.

Vantage and the Provider agree that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. As between them, time is of the

essence for this obligation, which the parties recorded expressly because the default position would be otherwise. This bites at Vantage's 2 sites, since a sub-assembly operator administers the Contract Manufacturing Agreement where the units work. Where Vantage has raised a query the Provider has answered by reference to Article 5 (Delivery and Title), and the exchange is on the contract file.

Vantage retains the right, notwithstanding Article 9 (Customer Obligations), to require that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. On this point, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. This bites at Vantage's 2 sites, since a sub-assembly operator administers the Contract Manufacturing Agreement where the units work. Vantage has taken the point up once since signature; the correspondence is filed against Article 4 (Orders and Quantities) and did not result in an amendment.

10. Assignment, notices and general

Article 2 (Definitions) provides that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. Tighter here than standard: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. 2 sites in North Carolina means Vantage applies the Contract Manufacturing Agreement through its regional operations team rather than through head office. Where Vantage has raised a query the Provider has answered by reference to Article 14 (Indemnities), and the exchange is on the contract file.

Vantage Assembly Solutions Inc. is entitled to require that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. Strictly, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. This bites at Vantage's 2 sites, since a sub-assembly operator administers the Contract Manufacturing Agreement where the units work. For a manufacturer of Vantage's size the clause is unremarkable, but Article 14 (Indemnities) is drafted more tightly here than in the Provider's standard form.

Vantage Assembly Solutions Inc. has notified the Provider that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. On the wording, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Vantage runs 2 sites from North Carolina in sub-assembly, so the Contract Manufacturing Agreement is administered locally and this clause is applied per site. Because Vantage operates in sub-assembly, the practical burden of this clause falls on its North Carolina operation, and Article 4 (Orders and Quantities) governs how it is measured.

Vantage is not obliged, under Exhibit C, to accept that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. As agreed, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Because Vantage is a North Carolina sub-assembly business with 2 sites, the Contract Manufacturing Agreement devolves this to the site manager. Because Vantage operates in sub-assembly, the practical burden of this clause falls on its North Carolina operation, and Article 15 (Limitation of Liability) governs how it is measured.